

Discharge of Contract

Partial performance means that only a portion of what a party has agreed to has been completed. Sometimes, partial performance is enough for the other party; sometimes, it results in a termination.

Specific performance is a lawsuit to force the other party to perform under the contract terms (no moneys, just actions). It means that a party must do exactly what they agreed to do. So if a seller agreed to sell a property and then later reneged, the buyer can sue for specific performance, meaning the seller must sell the property as agreed. No other property or monetary damages equal specific performance-only meeting the terms of the original contract qualifies.

Substantial performance (of ample or considerable amount) occurs when one party has met most but not all of the terms specified in the contract, and therefore may be required to pay damages for the terms not met. For example, a painter is paid to paint a 200-foot fence and only completes 190 feet. This can also refer to sellers who do not fully complete agreed-upon repairs, but the buyer will still accept the property and fulfill the transaction.

Impossibility of performance occurs when the property is destroyed or made the subject of eminent domain. The parties cannot legally or practically do what they've agreed to do, so they are released from their obligations under the contract.

Operation of law is the manner in which an individual acquires rights or liabilities automatically due to law, and not through an agreement or act of their own. It exists because the courts have determined, through prior cases, what the parties intend. For example, homestead rights are automatic, because the law says they exist. There is no need for an individual to file documents to obtain homestead rights. Another example of operation of law is if a person dies **intestate** (without a will), that person's heirs will inherit their property due to the law of descent and distribution. This type of right exists through the operation of law, because even without a will, the law says the deceased person's heirs inherit that person's property. Similarly, if an individual dies while in the process of completing a real estate sales transaction, the individual's heirs are required by law to meet the terms of the contract.